



WHISTLEBLOWING POLICY



JULY 2023



POLICY CONTROL BOX	
Policy Name	Whistleblowing Policy
Policy No.	
Effective Date	
Last Review	
Related Policies	All policies and instruments
Responsible Officer	Vice Chancellor
Implementing Offices:	Deputy Vice Chancellor, Registrar, Executive Deans, Director of Student Affairs, Heads of Department, Internal Auditor.

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Abbreviations and acronyms

IIC	Internal Integrity Committee
SDC	Students Disciplinary Committee

Definitions:

Corruption: directly or indirectly accepting or agreeing or offering to accept any gratification from any other person, whether for the benefit of themselves or for the benefit of another person; or giving or agreeing or offering to give to any other person any gratification, whether for the benefit of that person or the benefit of another person.

Whistle-blower: a person who raises a genuine concern in good faith relating to any suspected wrongdoing or malpractice.

Whistleblowing: disclosing of information, by an employee, a student, or any other interested person, about fraudulent, unethical or corrupt activities within an organisation.

1.0 INTRODUCTION

The University of Malawi Act No. 18 of 2019 highlights, as one of the institution's principles, the upholding of "integrity to ensure adherence to the highest ethical and professional standards". In line with this principle, the institution has always taken steps to ensure that its staff and students comply with the law and act ethically in their conduct, realising that this conduct is reflective of the general standing of the university. Specifically, the University acknowledges the Constitution of Malawi's aim to promote measures that guarantee accountability, transparency, personal integrity and financial probity in the country's public institutions. Compliance with the law includes enshrining within the staff and students a sense of responsibility and fairness, and providing means through which any suspected breaking of the law, in various forms, may be reported to responsible authorities through appropriate channels.

The University of Malawi (UNIMA) Whistleblowing Policy is, therefore, developed on the background of the recognised need for staff and students to have channels through which they may report suspected acts of wrongdoing and malpractice observed in the institution's delivery of its core functions of teaching and learning, research and community outreach. The University recognises that unethical, corrupt and fraudulent acts affect the reputation of UNIMA within the country and globally. These acts tend to deceitfully benefit the few, while disadvantaging the many, thus disrupting the value of equality that is at the core of employment as well as the provision of education at the institution. Such acts also further have the potential to adversely affect the operations of the university, through mismanagement of its resources.

Due to the sensitive nature of some whistleblowing reports, UNIMA recognises that some people may be reluctant to disclose the wrongdoing

or malpractice, due to fear of repercussions. In view of this, UNIMA shall ensure the safety and confidentiality of the whistle-blower, while pursuing the matter to its conclusion.

In the interest of fairness and upholding the law, UNIMA expects all staff and students to exercise, where required, their responsibility to report acts of wrongdoing and malpractice. Through the Whistleblowing Policy, UNIMA shall continue to safeguard the integrity of the institution.

2.0 POLICY STATEMENT

UNIMA is driven to ensure a working and learning environment where all stakeholders feel free to raise concerns about any wrongdoing they may observe, with the understanding that such concerns shall be taken seriously and be pursued and concluded in a timely manner.

3.0 GOAL AND GUIDING PRINCIPLES

3.1 Goal

To provide a framework through which UNIMA staff and students can report suspected acts of wrongdoing and malpractice.

3.2 Policy Objectives

- (a) To encourage staff and students and other stakeholders of the university to report malpractice within UNIMA.
- (b) To provide guidance on the reporting procedure while ensuring the confidentiality of whistle-blowers.
- (c) To highlight the seriousness with which UNIMA regards whistleblowing through outlining the process that shall be undertaken by UNIMA upon receipt of such reports.

3.3 Guiding Principles

The implementation of this policy shall be guided by the following principles:

- (a) Commitment to the whistle-blower's safety.
- (b) Commitment to the whistle-blower's integrity.

- (c) Commitment to investigation completion
- (d) Ensuring decisive action by university leadership
- (e) Provision for natural justice
- (f) Compliance with the law.
- (g) Operating in the best interests of the University of Malawi and the nation of Malawi.

3.4 Expected Policy Outcomes

The following are the expected outcomes of the policy.:

- (a) A working environment where staff and students feel free to report any malpractice in UNIMA.
- (b) Clear processes through which the confidentiality of whistleblowers shall be protected.
- (c) Acknowledgement that the institution regards whistleblowing with the utmost seriousness through pursuit of whistleblowing reports to their conclusions.

3.5 Safeguards

3.5.1 Harassment or victimisation

The university shall not tolerate any harassment or victimisation of a member of staff or student who reports or seeks to report a wrongdoing or malpractice. The university shall take appropriate action to protect anyone when they raise such issues in good faith. Any investigation into allegations of potential wrongdoing and malpractice shall not influence or be influenced by any disciplinary procedures that already affect a whistle-blower or that may be underway relating to them.

3.5.2 Confidentiality

All reports of wrongdoing and malpractice shall be treated with strict confidentiality and every effort shall be made to keep the identity of any member of staff making an allegation confidential if they so wish, so long as it does not hinder any investigation. At the appropriate time, the individual making the disclosure may need to provide a statement as part of the evidence gathering process and their identity may be revealed or implied as part of the investigation process. In cases where a criminal investigation follows, the member of staff may be needed as a witness.

3.5.3 Anonymous allegations

This policy encourages staff and students to indicate their name when reporting wrongdoing and malpractice where possible. Those incidences reported anonymously will be considered at the discretion of the Vice Chancellor. In exercising this discretion the Vice Chancellor shall take the following into considerations.

- (a) the gravity of the issues raised;
- (b) the credibility of the concern; and
- (c) the likelihood of confirming the allegation from other sources.

3.5.4 Untrue allegations

If a member of staff or a student makes an allegation of wrongdoing and malpractice in good faith, but an investigation does not confirm it, there will be no repercussions. If, however, the whistle blower makes an allegation maliciously, frivolously or vexatiously for personal gain, then disciplinary action may be taken against the individual concerned as per the University's disciplinary policy.

4.0 POLICY AREAS

4.1 Key areas

- a) Safety
- b) Confidentiality
- c) Action

4.2 Application of the Policy

This policy applies to:

- a) full time, part-time or temporary employees of the University
- b) students of the University
- c) any independent contractors as representatives of the University
- d) a supplier/service provider or an employee of such a supplier/service provider

4.3 Possible issues for whistleblowing

Whistle-blowers may report on a variety of matters. These may include:

- a) theft of institution's resources or funds
- b) fraud
- c) corruption
- d) mismanagement of funds
- e) disclosure of confidential information
- f) equipment and resource abuse
- g) plagiarism

- h) non-disclosure of private work
- i) manipulation, falsification or fabrication of research data
- j) discrimination
- k) bullying (including cyberbullying)
- l) sexual harassment
- m) deliberate acts meant to sabotage the integrity of the university
- n) any act that is against existing policies or codes of conduct at UNIMA.
- o) deliberate concealment of any of the above.
- p) attempts to sabotage investigations of whistle-blowing reports.

4.4 Reporting a concern

- a) The whistle-blower may submit their written or verbal report on suspected unethical conduct through any of the following channels:
 - i. to their immediate supervisor
 - ii. to the Internal Auditor
 - iii. to the Chairperson of the Internal Integrity Committee (IIC)
 - iv. to the IIC through the portal provided on the institutional website (www.unima.ac.mw/report-suspected-corruption-or-unethical-behaviour)
- b) The matter shall thereafter be forwarded to the Vice Chancellor.

4.5 Dealing with the concern

- a) Upon receiving the alert, the Vice-Chancellor shall take any of the following actions:
 - i. assign the matter to an existing committee to investigate, or
 - ii. appoint an ad hoc committee to investigate the matter, or
 - iii. refer the matter to law enforcement;
 - iv. institute an independent inquiry.
- b) At the end of the investigations, the whistle-blower shall be informed of the outcome and actions taken.
- c) Should the outcome of the investigations reveal that the allegations were made maliciously, the whistle-blower shall be subject to disciplinary action.
- d) The institution shall be informed, through a public notice, of the outcome of the investigation.

5.0 IMPLEMENTATION

The Vice-Chancellor shall oversee the implementation of the Policy with the assistance of the Integrity Committee, Executive Deans and Heads of Department, Registrar, Director of Student Affairs, and Internal Auditor.

6.0 MONITORING AND EVALUATION

- a) The Registrar shall coordinate the monitoring and evaluation of the whistleblowing policy.
- b) The Whistleblowing policy shall be reviewed every 3 years.